

The Claremont City Council held a meeting on Wednesday, September 9, 2020, via Zoom.

The meeting was called to order by Mayor Lovett at 6:30 p.m.

Mayor Lovett read the following statement: *This meeting is being conducted in accordance with the provisions of the Governor's Executive Order no. 2020-04 and the emergency meeting provisions of RSA 91-A to permit participation of board members by electronic means. Under the conditions of the current COVID-19 pandemic and the protocols established by the Centers for Disease Control (CDC), it is not reasonably practical for a quorum of this board's members to attend this meeting in person.*

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Members of the Council present were:

Ward I Councilor Andrew O'Hearne – Chambers – Councilors Sweetser and Stone

At-Large Councilor Abigail Kier – Home – 2-year old child

At-Large Councilor Erica Sweetser – Chambers – Councilors Stone and O'Hearne

Assistant Mayor Allen Damren – Home – Alone

Mayor Charlene Lovett – Home – Alone

At-Large Councilor Debora Matteau – Home – Alone

At-Large Councilor Nicholas Koloski – Work – Alone

Ward II Councilor James Contois – Home – Alone

Ward III Councilor Jonathan Stone – Chambers – Councilors Sweetser and O'Hearne

Also present:

Edward Morris, City Manager

AGENDA CHANGES

Mayor Lovett asked to move 10G. LSR-Welfare Costs, No Residency Requirement to the next meeting, as it was not ready. Council agreed.

REPORT OF THE SECRETARY

A motion was made by Councilor Kier and seconded by Councilor Stone to accept the minutes of the August 12, 2020, City Council meeting, as amended.

Mayor Lovett said the bottom of page 10, second to the last paragraph, "Goddard Block was approved for 5 years for 34 housing units" and that number should be corrected to 36 housing units. On page 16, on the vote for Resolution 2021-7, establishing a capital reserve, it was recorded that Councilor Stone voted yes and she voted no. It should be recorded that Councilor Stone voted no and she voted yes.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

A motion was made by Councilor Kier and seconded by Councilor Contois to accept the minutes of the August 22, 2020, City Council meeting. [This was a walking tour of the City center.]

Roll call vote:

O'Hearne - abstain

Kier - yes

Sweetser - yes

Damren - yes

Matteau - abstain

Koloski - yes

Contois - yes

Stone - abstain

Lovett - abstain

Motion carried 5-0, with 4 abstain as they were not at the meeting.

A motion was made by Assistant Mayor Damren and seconded by Councilor Stone to accept the minutes of the August 26, 2020, City Council meeting.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes
Damren - yes
Matteau - yes
Koloski - yes
Contois - yes
Stone - yes
Lovett - yes
Motion carried 9-0.

MAYOR'S NOTES

- She read from a letter from Grace Adams, Ronald McKenzie's sister, regarding appreciation for the rededication of the McKenzie Memorial.
- Thank you to all who voted in yesterday's Primary and all who worked on the efforts. 34% of Claremont's registered voters participated.
- September is National Recovery Month, go to the SAMHSA website for more information.
- 2020 Greater Nashua Childhood Lead Poisoning Prevention Conference will take place virtually on Wednesday, September 30 and is free.
- September 30, 6:30 p.m., a special meeting of the Council will be held for governance.

CITY MANAGER'S REPORT

- **Thank You** – Thanked Claremont Police Department and other agencies that responded and helped with the call on North Street on August 27th. This incident ended peacefully. The actions shown are in line with the Claremont Police Department's Mission Statement which starts out by stating:

"The Claremont Police Department strives to provide the City of Claremont with professional, compassionate police services with a primary focus on working together with the Citizens of Claremont to help maintain or improve the quality of life within the City of Claremont."

- **Wastewater Dryer Project** – While working on a possible transition from composting our wastewater sludge to installing a sludge dryer, the City was approached about the idea of creating a regional drying facility, which could lower the costs of our sludge process and provide some revenue to our wastewater fund. I will be working with our wastewater engineers, the New Hampshire Department of Environmental Services, the Claremont Conservation Commission and others throughout the City to determine the feasibility of this concept.
- **Pleasant Street** – Now that the City Council has supported the bond resolution, City Staff is moving forward completing the design and final engineering of the project. On Tuesday, September 15, 2020, 6:00 PM, the City will host a public meeting via ZOOM

to focus on the landscape architecture, structures, and streetscape to compile public input before completing final design.

- **19 Sullivan Street** - Though this is not a City project, you may have noticed that the County has initiated the Sullivan House project. One noticeable change is the sandblasting of the paint off the building. The contractor who is doing the work is certified to remove lead-based paint and is using “wet blasting” equipment to remove chips that are large enough, heavy enough, and wet enough to fall to the ground where they are bagged and properly disposed of. Through this process, there is no lead dust created.
- **Blight Issues** – The City is working with the Historic District Commission regarding possible demolition of City-owned properties at 111 Main Street, 119 Main Street, and 60 Central Street.

COVID-19 Update

- **COVID-19 Update** – As of today, there are 2 active cases in Sullivan County. Even as NH remains at a relatively low rate of infection, we must stay vigilant in our efforts to control the spread of the virus. According to the DHHS website we currently only have 5 active cases in all of Sullivan County. If we continue to keep good hand hygiene and sanitization efforts, maintain social distancing, and wear masks when in public, we can continue to keep our numbers low and protect the health of the citizens of Claremont.

Valley Regional Hospital is now a NH-HHS testing site. The Hospital asks that all people register for a testing time. For pre-registration or to make an appointment, please visit <https://www.vrh.org/covid-19-information/>. For additional questions, please call the COVID Hotline at 603-542-7850. Information is also available on the City’s webpage and other media sites, with links to online registration portal.

- **Community Center Update** - At the Claremont Savings Bank Community Center (CSBCC), the City continues to slowly expand services. While the CSBCC continues to require kids under the age of 15 to be accompanied by an adult during most open times, they will be providing afterschool programming for school children ages 10 and up, now that school is back in session. Students will be required to register for a specific time slot for the gymnasium, pool or fitness room. Students registered for these programs must meet age requirements for use of the pool, and fitness center. To help maintain social distancing and maximum capacity requirements, participants must stay in the area they registered for and not move from one program area to another. When their assigned time slot comes to an end, students will need to exit the CSBCC as tables, common areas and the exterior of the building are not available for gatherings. There is no cost for members to sign up and the cost for non-members is \$6 per week. You can register for these activities by visiting our website at Claremontparks.com or by calling (603) 542-7019. Keep an eye out for more activities to be added; kids will be able to register for them as they become available.

- **Library Update** - The Library continues to increase hours of use, and now allows patrons to move throughout the Library. Starting after Labor Day, the new Library hours will be: M, W, F: 9-3; and T, Th: 11-6.
- We have received \$30,000 from the second GOFERR payment from the CARES Act Funding. This gives the City of Claremont a total reimbursement of \$56,666.70, so far. The GOFERR reimbursement process has changed and is allowing the City to ask for reimbursement for first responder and health related payroll expenses up to the City's allotted amount of \$313,638. The City will be submitting a reimbursement request in excess of the \$256,971.30 in hopes of being reimbursed the entire amount of the grant awarded.

Mayor Lovett said in the Fire Department Report it was reported that members of the Claremont Fire Department participated in the home delivery of a healthy baby boy. She congratulated them.

APPOINTMENT TO BOARDS AND COMMITTEES

Fiske Free Library Board of Trustees

A motion was made by Councilor Kier and seconded by Councilor Matteau to appoint Annalisa Parent to Seat A-1 of the Fiske Free Library Board of Trustees.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Energy Advisory Committee

Mayor Lovett said Councilor Sweetser had expressed a desire to serve on the Energy Advisory Committee.

A motion was made by Councilor Koloski and seconded by Councilor Stone to appoint Councilor Sweetser to seat 4 (City Council Representative) of the Energy Advisory Committee.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

CITIZEN'S FORUM

No one spoke.

OLD BUSINESS

Proposed Council Rule Change

1. Citizen Letters

- A. The original language, presented by Mayor Lovett, was written to outline a process for addressing citizens' requests to have letters read into the record. Over the course of time, the requests to have such letters read into the record had become more frequent and a process for considering such requests was needed. Thus the following was proposed:

“When the Council receives a citizen's request to enter a personal letter into the record, the letter will be attached to the minutes in its entirety. It will not be read into the record unless the citizen does so or has another citizen do so on his/her behalf. If the topic of the letter is not an agenda item, the citizen shall read the letter during citizens' forum. If the topic of the letter pertains to an agenda item, the citizen will read the letter at the time during which that agenda is discussed.”

- B. After the original language was proposed, various concerns/questions were raised. Consequently, Mayor Lovett requested guidance from Attorney Johnston of NHMA, and received the following:

“There is absolutely no requirement that a constituent's letter be read into the record upon request. The council may honor such a request, but it is up to the council's discretion; there is no specific standard for deciding whether to grant such a request.

However, I would be wary of allowing it except in unusual circumstances. My concern would be that if you allow some letters to be read into the record, someone could claim that you have created a “public forum” in which you cannot discriminate based on content or viewpoint—so now you must grant every such request. If the council is discussing an issue and someone has written a letter that a councilor finds compelling, and the councilor wants to adopt that letter as an expression of his or her own opinion, I would allow the councilor to read the letter as part of the council’s debate on the issue. But I would not get into the habit of allowing letters to be read into the record just because someone has asked, unless you are willing to do it in all cases.

On your second question, I interpret “read into the record” and “entered into the record” differently. The former means that you or one of the councilors actually reads the letter at the meeting. The latter suggests that it is not actually read at the meeting, but the council refers to the letter and votes to “enter it into the record,” meaning to include it in the minutes. In either case, I would simply attach a copy of the letter to the meeting minutes.”

- C. Based on the above legal counsel, Mayor Lovett proposes the original language be amended as follows:

A citizen’s request to have a letter either read or entered into the record will only be granted if a Council member finds the letter compelling and is willing to adopt that letter as an expression of his or her own opinion on the issue before the Council. Should this occur, a copy of the letter will be attached to the meeting minutes.

2. Appointment of Councilors to Boards, Committees or Commissions

- A. Given the number of questions raised regarding the process for such appointments, Mayor Lovett originally proposed the following language:

“Appointments of Council members to boards, commissions or committees will occur in January via the nomination process at a Council meeting. Council members should indicate their desire to serve on a board, commission or committee NLT the first regularly scheduled meeting in January. After accepting all nominations for an appointment, the mayor will ask for a vote for each member seeking the appointment. The individual with the highest number of votes shall be appointed for a one-year term. If, after successfully completing his/her one-year term, the Council member is seeking reappointment, he or she should be given preference.

- B. The Council discussed the proposed rule and was not in agreement with the idea of a one-year term. Therefore, Mayor Lovett proposes the following amendment to the original language:

Appointments of Council members to boards, commissions or committees will occur in January via the nomination process at a Council meeting. Council members should indicate

their desire to serve on a board, commission or committee NLT the first regularly scheduled meeting in January. After accepting all nominations for an appointment, the mayor will ask for a vote for each member seeking the appointment. The individual with the highest number of votes shall be appointed.

Prepared by Mayor Lovett for the September 9 Council meeting.

Councilors' thoughts regarding Citizens Letter:

- Have a time limit on reading the letter into the record.
- Don't necessarily require the letters to be attached to the minutes.
- Councilors can read the letters that is an expression of their own opinion.
- Instead of Councilors reading the letters, the Council Clerk can read them into the record.
- Limit the number of words in the letter(s) to be read.
- Not in favor of reading the letters into the record. If it were a requirement to read the letters into the record, the number of letters the Council receives could increase significantly. Letters sent to the Council is feedback from the public.
- Based on legal counsel, if Councilors want to have letters read into the record by a Councilor, it is read them all, or read none.

Mayor Lovett will take Councilors' input and send to legal counsel. She will put the response into the next Council packet. She confirmed that no one was saying "no" across the board.

Mayor Lovett said in Appointment of Councilors to Boards, Committees or Commissions, it reads: "Appointments of Council members to boards, commissions or committees will occur in January via the nomination process at a Council meeting. Council members should indicate their desire to serve on a board, commission or committee NLT the first regularly scheduled meeting in January." It should read: "Appointments of Council members to boards, commissions or committees will occur in January, or upon a vacancy, via the nomination process at a Council meeting. Council members should indicate their desire to serve on a board, commission or committee during the first regularly scheduled meeting of the month. After accepting all nominations for an appointment, the mayor will ask for a vote for each member seeking the appointment. The individual with the highest number of votes shall be appointed."

A motion was made by Councilor Matteau and seconded by Assistant Mayor Damren to adopt the Council Rule: Appointment of Councilors to Boards, Committees or Commissions, as amended, "Appointments of Council members to boards, commissions or committees will occur in January, or upon a vacancy, via the nomination process at a Council meeting. Council members should indicate their desire to serve on a board, commission or committee during the first regularly scheduled meeting of the month. After accepting all nominations for an appointment, the mayor will ask for a vote for each member seeking the appointment. The individual with the highest number of votes shall be appointed."

Roll call vote:

O’Hearne - no

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - no

Lovett - yes

Motion carried 7-2.

NEW BUSINESS

Resolution 2021-14 Additional Funds for North & Main Street Project – Public Hearing

WHEREAS the City of Claremont, New Hampshire (the "City") received Federal Highway Improvement Grant funds in 2011 for the reconstruction of the North and Main Streets intersection anticipated to cost \$4,810,000 (the “Grant”); and

WHEREAS acceptance of this Grant required that the City provide local matching funds in the amount of \$785,000 for the North and Main reconstruction project (the “Project”) which was done as part of the 2011 bond as well as \$100,000 appropriated in the 2011 Budget; and

WHEREAS due to the length of time and increased costs and project expenditures previously billed at the City’s 20% match has caused an increase in projected costs;

NOW THEREFORE BE IT RESOLVED to raise and appropriate the sum of \$88,416.75 as the City’s match for the Project, said sum shall be in addition to the funds already appropriated, spent and/or encumbered previously, with offsetting revenue to come from the Municipal Transportation Capital Reserve Fund (to have no impact on the tax rate); and

BE IT FURTHER RESOLVED to authorize the City Manager or the Treasurer, or their designees, to withdraw said funds from the Municipal Transportation Capital Reserve Fund; and

BE IT FURTHER RESOLVED that the City Manager, or his designees, are hereby authorized to undertake all actions and execute all documents as may be required to implement this resolution. *(2/3 Vote Required)*

Mr. Morris gave a brief overview.

Nancy Merrill, Planning and Development Director said the North and Main Street Project has been a long time coming. This is the third project with a Federal earmark.

Tom Krebs, Project Manager, talked about cost share.

The bid will go out next fall and the project will start in 2022. This is expected to take two construction seasons and will finish in 2023. Traffic and pedestrian safety will be increased at the intersection. North Street will be a continuous route and Main Street will come to a “T.” Bike lanes will be added.

A motion was made by Assistant Mayor Damren and seconded by Councilor Kier to adopt Resolution 2021-14 Additional Funds for North & Main Street Project.

Assistant Mayor Damren read the resolution into the record.

Ms. Merrill said the proposed truck route that NHDOT is working with our engineer on would go down to the end of North Street, turn left onto Main Street, to Union Street. All the parties involved in this project, are aware of this proposed truck route.

Ms. Merrill said this goes back to an earmark in 2006. It’s been a long time, so that impacts the cost. The City had three projects with earmarks. The other projects moved forward ahead of this one.

Ms. Merrill said this project can be posted on the City’s website for public information.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

O’Hearne - no

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - no

Lovett - yes

Motion carried 7-2.

Ordinance 576 Amend Merit Plan – First Reading

The purpose of this proposed change is to create a position which is titled, the Adverse Childhood Experience Response Team (ACERT) Coordinator. This will be a new position within the City of Claremont’s Police Department, however, no grade or salary ranges will be impacted by this amendment as this position will be slotted into the City’s existing Grade 8 of the Non-Union Employee Pay Schedule – Attachment C [which document is on file at the City Manager’s office]. The current maximum salary for a Grade 8 employee is \$56,829 and the minimum salary is \$37,362.60.

The amendment seeks to create this position in support of the Greater Claremont Area ACERT Program. The responsibilities of this employee will largely be associated with identifying and offering assistance to those families and children who are exposed to violence or other adverse conditions. The creation and development of this position as well as the financial obligations associated with this hiring are to be shared by and through a partnership that the City maintains with the Newport Police Department, Turning Points Network, the Sullivan County Child Advocacy Center, the Claremont School District and the TLC Family Resource Center.

Enactment of this Ordinance will amend the City of Claremont Merit Plan accordingly and institute a full job description for the position of Adverse Childhood Experiences Response Team Coordinator. This change is requested by the City Manager.

Mr. Morris said this is for the ACERT Coordinator. This is adding that position to the Merit Plan.

Police Chief Mark Chase said this is the last step to allow the City to use the grant. There are no matching funds. This will allow the Police Department to advertise for, and hire someone. This is a nonsworn, civilian position.

The job description was not included in the Council packet. Mr. Morris said that the job description and the Personnel Advisory Board minutes for that position will be included in the next Council packet.

Councilor O'Hearne would like to see that information before going forward. Mr. Koloski said if the ordinance is approved tonight, there are still two more readings where that information can be presented. Mayor Lovett agreed.

A motion was made by Councilor Koloski and seconded by Councilor Matteau to suspend Council Rules in order to just read the Explanation of Proposed Action, instead of the whole ordinance.

Roll call vote:

O'Hearne - no

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - no

Lovett - yes

Motion carried 7-2.

A motion was made by Councilor Kier and seconded by Assistant Mayor Damren to adopt Ordinance 576 Amend Merit Plan on First Reading.

Councilor Kier read the Explanation of Proposed Action into the record.

Roll call vote:

O’Hearne - no

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - no

Lovett - yes

Motion carried 7-2.

Discussion of Board of Assessors Membership

Stephan Hamilton, Interim Assessor, provided a list of boards or commissions that may have a potential conflict if a member of the Board of Assessors were to also sit on these boards or commissions: Claremont City Council, Claremont Development Authority, Claremont Housing Authority, Frances J. Tolles Home Board of Trustees, Tax Increment Finance District Advisory Board, Zoning Board of Adjustment, and Board of Appeals. He said the Claremont Planning Board could be unique and that any member of that board with a conflict could recuse themselves. There could be minor conflicts with Airport Advisory Board, Business Corridor Project, City Center Committee, City Center Initiative Committee, Claremont 250th Committee, Claremont Community Television, Inc., Claremont Planning Board, Claremont Police Commission, Conservation Commission, Fiske Free Library Board of Trustees, Historic District Commission, Mt. Ascutney Region River Subcommittee, Parks and Recreation Commission, Personnel Advisory Board, Trustees of Trust Funds, Upper Valley Lake Sunapee Regional Planning Commission, Licensing Board, and Claremont Energy Advisory Committee.

Mr. Morris said if Council is in favor, this would be sent to the attorney for legal review.

There was a discussion about whether or not this should go to the Policy Committee. The majority of the Councilors wanted to deal with it tonight.

The majority of the Council agreed to add to the list of potential conflicts three other boards: Personnel Advisory Board, Claremont Planning Board and Airport Advisory Board. Councilors agreed to authorize Mr. Morris to update the ordinance and have it reviewed by legal counsel.

Mayor Lovett said if possible, this would come back at the September 23rd meeting, if not, it would be the October 14th meeting.

Annual Approval of Investment Policy

Mr. Morris said this is an annual approval.

Lisa Richmond, Treasurer, gave a brief overview of the Investment Policy.

A motion was made by Assistant Mayor Damren and seconded by Councilor Sweetser that the Claremont City Council, pursuant to RSA 47:6 and RSA 48:16, hereby re-adopts the City of Claremont Investment Policy and authorizes the City Manager or his designees to take such actions as may be necessary to implement said Investment Policy in accordance with state law and regulation.

Roll call vote:

O’Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

A motion was made by Assistant Mayor Damren and seconded by Councilor Stone that the Council vote to refer the Investment Policy to the Finance Committee.

Roll call vote:

O’Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Resolution 2021-15 Apply for NH Drinking Water & Groundwater Trust Fund – Public Hearing

WHEREAS, the City wishes to submit an application to the New Hampshire Drinking Water & Groundwater Trust Fund Bureau for funds to complete projects relating to the removal of lead lines from the Claremont Water System; and

WHEREAS, in accordance with the “2020 Award Plan”, the NH Drinking Water & Groundwater Advisory Commission requires that a funding application for the Construction Projects Assistance Program include an “authority to submit application” to meet the threshold for project readiness; and

WHEREAS, the City presently has lead components in the water lines that provide service to the residents of Claremont; and

WHEREAS, the City wishes to protect the health and wellbeing of its citizens by replacing all the lead water lines:

NOW, THEREFORE, BE IT RESOLVED by the City Council to authorize the city manager, or his designees, to take such actions as may be necessary to file an application to the New Hampshire Drinking Water & Groundwater Trust Fund for a loan of up to \$2,000,000.

BE IT FURTHER RESOLVED that the city manager, or his designees, are hereby authorized to undertake all actions and execute all documents, including the loan agreement, related to this resolution, and the city treasurer is hereby authorized to act on behalf of the Water Enterprise Fund by signing monetary disbursements. *(2/3 Vote Required)*

Mr. Morris said that these loans would work in conjunction with each other, not to exceed \$2 million. The City is still looking for forgiveness of up to 50%, but after talking with the engineer, we’ll probably get 40%.

A motion was made by Councilor Kier and seconded by Assistant Mayor Damren to adopt Resolution 2021-15 Apply for NH Drinking Water & Groundwater Trust Fund.

Councilor Kier read the resolution into the record.

Mayor Lovett opened the public hearing.

Walt Stapleton, Ward 3, was in favor of this to go along with the lead abatement.

Rebecca MacKenzie, Ward 2, thanked Mr. Morris for looking into the financing and saving the City money.

Mayor Lovett closed the public hearing.

Roll call vote:

O’Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes
Contois - yes
Stone - yes
Lovett - yes
Motion carried 9-0.

Community Power Aggregation Committee Discussion

Mayor Lovett said this is step 1, mandated by statutes exploring the possibility of Community Power Aggregation, and whether it is beneficial to the community. Step 1 is to establish an aggregation committee. It can be a subcommittee of the Energy Advisory Committee (EAC).

Mr. Morris said he would like City Staff to be involved in this. He thinks being a subcommittee of the EAC would be a good idea. This will take quite a bit of work. This would allow the City to move forward and work on negotiating lower power costs for Claremont. Businesses/citizens could opt out. The City would become its own power company. It would take a lot of work and would be more than our current staff could keep up with.

Assistant Mayor Damren said we wouldn't be responsible for owning or constructing a generating facility. Mr. Morris said if there were a partnership with a big solar array, we could use that power.

A motion was made by Councilor Koloski and seconded by Councilor Sweetser to authorize the establishment of a Community Power Aggregation Committee.

There was a discussion about joining Community Power NH, or possibly making this countywide, and the number of people on the committee.

Councilor Koloski amended the motion in order to have a committee of five. Mr. Damren seconded.

Councilors wanted more information about the committee and its composition.

Councilor Koloski withdrew his motion. Assistant Mayor Damren withdrew his second. He agreed with Councilor Koloski that the committee should be made up of five individuals.

Councilors agreed there should be a Community Power Aggregation Committee. They will ask the EAC to weigh in. They will hear from Henry Herndon.

LSR-Welfare Costs, No Residency Requirement

Moved to the next meeting

LSR-Requirement for Communities to Pay into NH Retirement System

Mayor Lovett said the anticipated rate of return has been lowered. Any changes that lower the rate of return puts a heavier burden on the municipality. She said it may be best to continue to support legislation that requires the state to contribute into the retirement. Currently, the state contributes zero; years ago, it was 35%. At the September 23 meeting, Council will be given options regarding concerns about the amount that communities have to contribute to the retirement system because of the lowered rate of return.

Mr. Morris said according the NH Municipal Managers Association, the catch-up period to be fully funded may be extended to 2049. We're trying to fund a \$5 billion deficit, and moving it would make it a \$9 billion deficit. NH Retirement would be willing to brief the Council on this. He thinks we need to look at ways to address this as we are looking at an increase of over \$200,000.

There was a consensus to have a presentation with regard to the NH Retirement System.

Discuss Opening Council Chambers to Public During Council Meetings

Councilor Contois said the majority of cities in NH have mask mandate ordinances. The Governor's emergency orders regarding the pandemic are still in effect; Council can still meet via Zoom. The Governor's last order states that it is safer to stay at home. This process is working to help slow the spread of the disease. Our numbers are low and that gives us a false sense of security. Regarding children returning to school, they are using hybrid situations (some days in class and some days learning virtually). He is not in favor of the Council meeting in person.

Councilor Sweetser said she is suggesting that the Council use a hybrid approach to its meetings. She suggested adding an option for citizens to come into Council Chambers, with rules.

Councilor Matteau is in favor of the hybrid approach, as long as the Zoom option is available.

Mr. Morris said improvements are being made in Council Chambers (i.e. TVs, speakers, microphones). He cautioned Council that we would still have to follow the Governor's guidance, including wearing masks in Council Chambers, and limiting the number of people in the room.

Councilor Kier expressed her concern that even though our numbers are low, the number of cases still continue. Public safety is the first concern.

The majority of Councilors would like to move forward with a hybrid approach. Mayor Lovett asked Mr. Morris to take the steps necessary to allow the public to be able to attend the next meeting in a safe way. Mr. Morris said he thinks that everyone in that room should wear masks.

Mayor Lovett asked to have the guidelines placed in the Council packet.

Mr. Morris will encourage Directors to participate via Zoom in order to have fewer people in Council Chambers.

Councilors Contois and Kier don't think the public should be allowed in Council Chambers.

Councilor Contois reiterated the information he had put in the packet. Mr. Morris said he is not aware of any other NH cities meeting in person.

Mr. Morris said the meetings are shown on Facebook, Zoom, and CCTV (Claremont Community Television).

Mayor Lovett asked, if we do this, would all three Councilors (O'Hearne, Sweetser and Stone), who have been attending Council meetings in Council Chambers, would be comfortable wearing masks. All three said yes.

Most of the other Councilors plan to attend meetings remotely. Councilor Koloski said he plans to attend via Zoom, but if he had internet problems, he would pop into Council Chambers.

Mayor Lovett said all Councilors in Council Chambers would have to follow the same guidelines as the public. The expectation would be that the only Councilors that would continue to be in Council Chambers are the three that have been doing so, unless someone else speaks up. The idea is to give the public a safe option to participate in person, if they so choose.

COMMITTEE REPORTS

Councilor Stone said the Purchasing Policy would be worked on at the next Policy Committee meeting. The Holiday Display Policy is still being worked on.

FUTURE AGENDA ITEMS AND DIRECTIVES

There was a discussion about the City Manager's evaluation coming up. His start date was September 23, 2019. Councilor Stone said the Council also needs to address a Non-Public personnel issue.

Mr. Morris said it may be prudent in the future to do his evaluation at the end of November/beginning of December in order to set goals in January. For this first year, it makes sense to do it after his one-year mark.

The Council agreed to start the evaluation process in October. They will meet first without the City Manager and then invite him in to the meeting.

Councilor Kier said this item has no timeframe, but she would like to discuss Councilor terms. All Councilors are currently elected at the same time. There are pros and cons to staggered terms. Mayor Lovett said that would require a Charter change.

Councilor Koloski reminded the Council that since Wednesday, November 11, is a holiday, the Council would meet (by City Code) on Thursday, November 12.

CONSULTATION WITH LEGAL COUNSEL

None.

ADJOURNMENT

At 9:27 p.m., a motion was made by Councilor Matteau and seconded by Councilor O'Hearne to adjourn.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council